

The **P**hilistine

A Periodical of Protest.

*You have too much respect upon the world! They
lose it that do buy it with much care.*

—MERCHANT OF VENICE.



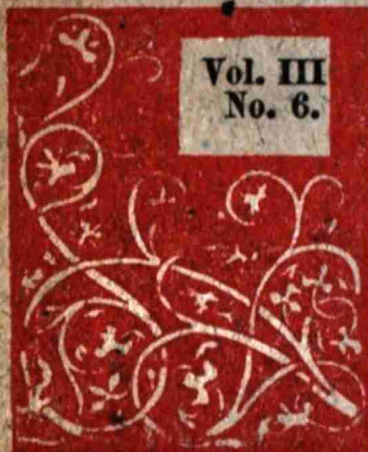
Printed Every Little While
for The Society of The Phil-
istines and Published by . .
Them Monthly. Subscrip-
tion, One Dollar Yearly. . .
Single Copies, 10 Cents. . .
November, 1896.  

The **P**hilistine

A Periodical of Protest.

*You have too much respect upon the world! They
lose it that do buy it with much care.*

—MERCHANT OF VENICE.



Printed Every Little While
for The Society of The Phil-
istines and Published by . .
Them Monthly. Subscrip-
tion, One Dollar Yearly. . .
Single Copies, 10 Cents. . .
November, 1896.  

The Project Gutenberg eBook of The Philistine

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Philistine
a periodical of protest (Vol. III, No. 6, November 1896)

Author: Various

Editor: Elbert Hubbard

Release date: October 9, 2023 [eBook #71846]

Language: English

Original publication: East Aurora: The Society of the Philistines, 1895

Other information and formats: www.gutenberg.org/ebooks/71846

Credits: hekula03 and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This book was produced from images made available by the HathiTrust Digital Library.)

*** START OF THE PROJECT GUTENBERG EBOOK THE
PHILISTINE ***

The Philistine

A Periodical of Protest.

*You have too much respect upon the world! They lose it that do buy it
with much care.*—MERCHANT OF VENICE.



Printed Every Little While for The Society of
The Philistines and Published by Them
Monthly. Subscription, One Dollar Yearly



Single Copies, 10 Cents. November, 1896.



THE PHILISTINE.



Contents for November.

- | | |
|---|---------------------------------------|
| 1. Karma , | Gelett Burgess |
| 2. Powers at Play , | Sarah Norcliffe Cleghorn |
| 3. Life , | Fred. W. Claus |
| 4. Our Friend the Enemy , | William McIntosh |
| 5. Lines , | Yone Noguchi |
| 6. In Re Ophelia , | Preston Kendall |
| 7. The Cricket, a Fable , | Eleanor M. Winn |
| 8. Side Talks , | The East Aurora School of Philosophy. |

American Academy of Immortals

Otherwise

THE SOCIETY OF THE PHILISTINES

An association of Book Lovers and Folks who Write and Paint.
Organized to further Good-Fellowship among men and women who
believe in allowing the widest liberty to Individuality in Thought and
Expression.

ARTICLE XII. SEC. 2. The annual dues shall be one dollar. This shall entitle the member to all the documents issued by the Society, together with one copy of the incomparable PHILISTINE Magazine, monthly, for one year.

ARTICLE XIX. SEC. 4. The duties of each member shall consist in living up to his highest Ideal (as near as possible) and in attending the Annual Dinner (if convenient).

Address The Philistine,
East Aurora, N. Y.

THE PHILISTINE is supplied to the trade by the AMERICAN NEWS COMPANY and its branches. Foreign agencies, BRENTANO'S, 37 Avenue de l'Opera, Paris; G. P. PUTNAM'S SONS, 24 Bedford street, Strand, London.

Entered at the Postoffice at East Aurora, New York, for transmission as mail matter of the second class.

COPYRIGHT, 1896, by B. C. Hubbard.

We are printing four hundred copies on  Hand-Made Paper of Mr. Hubbard's  Ruskin-Turner Essay. The book will contain twelve full-page photogravures from negatives taken especially for us in the National Gallery at London.

Price, per volume, \$5.00. *Twenty copies specially illumined by Bertha C. Hubbard; price \$10.00 each.*



ART AND LIFE, by Vernon Lee.

We have printed a small edition on Japan Vellum of this exquisite Essay and are illuminating the copies by hand. Bound in classic limp vellum, tied with tapes; price, \$5.00 per copy. *Twelve copies, no two alike, illumined by Mr. W. W. Denslow; also, Ten copies specially illumined by Mr. William B. Faville. Price, \$25.00 each.*



VOLS. II and III of the Philistine.

Handsomely bound in Buckram and Antique Boards, One Dollar per volume.



VOLUME ONE of the Philistine.

Bound in Antique Boards, price \$2.00 each.



OUT OF PRINT:

The Song of Songs,
The Journal of Koheleth.



THE LEGACY.

Mr. Hubbard's new two-volume novel, entitled THE LEGACY, is now ready for delivery. The book has 450 pages of text on Dickinson's rough Dekel Edge paper; photogravure portrait of author and illustrations on Japan paper. Bound in bottle green chamois, silk lined. Price \$3.00, for the two volumes, express paid.

THE
ROYCROFT PRINTING SHOP,
EAST AURORA, N. Y.



Philistine Readers

will be interested in a monthly illustrated magazine that is devoted exclusively to literature and its progress in America and England. No

person who lays claims to culture and wide reading can afford to be without The Bookman.

To any reader mentioning The Philistine we will send a sample copy free of all charge.

ADDRESS
THE BOOKMAN
151 Fifth Ave New York City



THE PHILISTINE.

NO. 6.

November, 1896.

VOL. 3.

KARMA.

Into his eyes there flashed a fire,
Out of its scabbard leaped the blade;
Three strides across the room he made—
His heart beat hot with fierce desire.

Cold is the wreck his steel has wrought,
While living horror takes its stead:—
Have all these years of calmness sped
To miss at last, the prize he sought?

O, blossom of that long-past life!
O, venom of forgotten sin!
So nearly won—again begin
The long, long round of weary strife!

GELETT BURGESS.



POWERS AT PLAY.

We caught for a moment the powers at play.—*Browning.*

The smell of kerosene in the pantry sickened the woman who was pouring it into lamps. Through the window and side-door the quintessence of the July noonday palpitated in. Twinkling black flies buzzed on the ceiling.

The woman pulled out the spice-drawer and sat down on it. It slanted uncomfortably forward, and she smelled with loathing the warm fragrance of spilled cinnamon. The kitchen clock whirred and struck eleven.

She went to the side-door and called to a man forking hay somewhere in the blinding distance.

“Abel! Abel! when do you want”——

“Can’t hear a word you say,” he called back impatiently. He leaned on his pitchfork, a blur of blue clothes back of dazzling hay and steel.

“What time do you want—I should have—dinner?”

Her voice rose high on the last word.

“Well!” the man kicked at something in the confused grass. “Well, quarter past twelve, I guess. Got to go over to Sydney’s, you know, well, say half past twelve, that’ll give me plenty a’ time; half past twelve.” He lifted a fork full of wizened hay and began to whistle.

The woman shut the door. She turned to the window, leaned out in the hot light, and pulled to the blinds. Standing up in the sudden darkness she felt a hammering in the back of her head. Pink and green lizard-like coils of nothing swam over the china-shelf.

“It’s them pink plates,” she said aloud. “No sir! it’s in my eyes!”

She rested her head against the warm plaster for a minute. Her eyes blinked at the incessant colored coilings in the air. Her hanging hands seemed to pull at her shoulders. Something fused into a troublous unreality the shelves, the odors, and the drone of flies.

Suddenly she became aware of waking up from a swift uncomfortable dream. A shiver of air stirred through the shutters. She shrank away from it, cold. As she stepped into the dark front hall, a hot rush of blood flushed her face like air from an oven. She sat down by the back window, let her hands drop, and woke up again from rapid dreaming.

The start of this shiver shook her permanently awake. Her wide eyes looked out through the shutter-slits, on a blue-green shady spot in the doorway. "I should like," she said slowly, "to lay down under them trees—on a shawl—and go to sleep. But I s'pose there's bugs dropping off the trees—oh, but it looks nice!—There's Abel's dinner, let me see, new potatoes, dock-greens, bacon. I wonder if folks could see me from the road? oh, it would look awful silly! I got a good mind to do it, though. I'm just beat out! I don't see how women keep up and do their work—Abel's got to have his dinner—I got a good mind"—

She began to be agitated. She was pressed upon by tradition, by generations of women that never had slighted their work. Their transmitted canonized habits stifled her, wrapping innumerable folds about her small wrestling will. The sleepy air about her magnified her labor. She had never heard of such a thing, her mother never would have done it! and was Abel to go over to Sidney's on an empty stomach? But her will to get dinner seemed paralyzed.

There was a small swirl and soar of dust up the road, as of a strong summer wind. The trees swished outside, the new cool air billowed up the little hall. The woman looked out again at the sheltered place in the yard; then she picked up the small rug by the door and went out.

It was a dry, cool place, under blue-green layers of maple boughs. There were lumps and hollows in the turf, and the grass was fat and long. The branches plashed gently as a faintly piping bird pushed through them. Two or three small leaves blew down and stirred in the woman's hair. The grass protruded gently against her face; every breath renewed the fresh smell of it. Far away clicked a hay-gathering machine, in the olive, billowy, upland fields—thick timothy starred with goldenrod. Her eyes closed on the white road, curving down hill between cushiony meadows, but from an infinite drowsy distance she heard a tin pail swing with a creak, and dimly fancied the glare on it.

At noon, Abel finished the patch, dropped his pitchfork, and tramped up across the lumpy ground. His blue shirt was hot and damp, pricked through by the dazzle. He could almost see the tan thicken on his hands. The swing of walking and walking towards home and towards dinner was keen pleasure. He liked to lift his great boots and stamp down the dry, puffy sod.

Inside the kitchen door there was a sleepy and motionless air; nothing hummed on the stove but the multitudinous flies about the boiler. Cups and saucers gleamed whitely through the glass pantry door.

“Clara!”

“Clara!” Twice Abel’s voice cut the monotone, but it closed in again like deep water.

He burst through the hall and swung back the front door. In the flood of daylight his eyes caught the red and white stripes of her skirt, low among fringes of grass under the maple.

His heart jumped in a great fright. There seemed to be insects in his blood that buzzed. His pulses dinned and pounded. The skin was drawn tight to bursting round his neck. He stopped still, then ran and jumped the piazza railing with a smothered shout. He stumbled across the lawn, hindered by his tense veins as by strings. His body seemed to have swollen in a sort of anger.

She lay there on the hall rug. One hand stirred in the sleek grass as an eager little ant crept over it.

Abel’s breath came easier.

He sat down by her on the sod. She had become so valuable that he could not bear to touch her or speak to her, but he reached up and lightly shook the branches. An insect was flung down in confusion, a mass of kicking black legs.

She looked up with surprised eyes at the broad blue chest and the bared arm just letting go the bough. Abel leaned over and flicked a caterpillar from her sleeve. Her hand shrank away, and he took hold of it, drawing her sidewise until she sat up.

“I thought you—well, I had a good scare!” said Abel.

“It was dreadful hot,” she said stupidly, “and I was so tired I couldn’t—oh, you haven’t had no dinner, and you got to go over to Sidney’s! oh my, what time is it? I forgot. I don’t know how I forgot. I just let it go. Oh, what possessed me? well, I was so hot and tired, I just couldn’t”——

“There! I don’t care a snap!”

He sat looking at her warm throat and face. “Say, I’ll skirmish ’round and git dinner myself,” he added. “You stay right here—or, come—I’ll help you int’ the house.”

He threw the rug over one arm and put the other round her waist. He would have liked to push the stars aside for her. She put her head on his shoulder.

SARAH NORCLIFFE CLEGHORN.



LIFE.

A singer paused upon the shore, Forever,
And sung the love song, Life, with voice full free;
Yet heeding, lest the song be wrongly rendered
And Life be made a harsh inharmony.

FRED. W. CLAUS.



OUR FRIEND THE ENEMY.

It was no discredit to anyone to be on speaking terms with Satan in the early days. The best of us could have tipped a hat to him on the street or had him to a wheel meet without loss of social prestige. For Satan was good people before a certain event which is a prologue to human history. He was one of the Princes of Light and moved in the best circles once upon a time, when everybody was well-bred and had a tide, like an Irishman's ancestors.

Satan was Walking Delegate to the created universe a few thousand years ago. He assumed that dignity soon after a disturbance in heaven, where he undertook to unionize the angels and was thrown out. What happened after his celebrated fall is told in the book of Genesis. He came into the Garden eastward in Eden and found labor progressing there peacefully. The man was tending the trees and truck, and all the beasts of the earth were obedient to him; and the woman did not know too much to be happy. After he had organized things, labor was a penalty and a trial to the human race, and the sweat of the brow had become a badge of punishment.

Satan was not himself condemned to work. Walking delegates never labor. He was simply required to go in and out on his belly from that day, in his capacity as an agitator and promoter of strikes.

It has been whispered to me by a sage who dwells among the hills of Persia and holds the modified sun-worship of the Ghebers, that Satan's claim to the authorship of evil in the world is in dispute. An investigation is going on in the hill country, whence cometh great help in the solution of world-old riddles. It was started some forty centuries back, more or less, by one Zoroaster, who so Frenchified the religion of that day that the absorbent Hebrews, ever ready to trace the idea of sex in anything, adopted the dual theory of divinity, and were called to order by the first and greatest of their prophets later on. But in the title search of creation conducted by the Persian sages something came to light which abated the pretensions of the Walking Delegate. It was found that what he called his particular dominion was held on no better title than a quit claim, and the Jewish Prophet who set

forth the unity of the Final Authority made proclamation of this also, in these words:

“I form the light and create darkness; I make peace and create evil; I the Lord do all these things.”

It may be remarked that the proclamation of the divine herald here cited is not fully acknowledged up to this day, even in the churches that profess his theology. But, seeing that it took a dozen centuries to set aside the idea of a dual divinity, it is not surprising that twenty-five centuries have passed without an absolute clearing of squat claims to universal dominion—for idolatry is of rapid growth, but it decays exceeding slowly, and so reverses the general law of primitive nature.

So it happens that the Walking Delegate of the Garden, who organized the original lock-out, is in chancery for all time defending a pretender's claim. There is a *caveat* on the process of disintegration, which is part of creation, antedating his. Near a thousand years before Isaiah proclaimed the divine origin of evil the Levite priests almost discovered the great principle when they set forth the marks and tints whereby the leper's brand of death might be known. They blindly testified to a marvelous fact that, once fully recognized, ends the theory that death is a penalty. They found the leper's ominous ulcers uniform and complex. They almost knew that the complexity of destruction is as ingenious as the complexity of life, and the product of as high a creative power.

A sad day it was for the authority of our alienated friend, the Walking Delegate, when the seeds of disease were found and science proclaimed, twenty-five centuries after Isaiah, that the Lord of All created the parasite, which has life, as he created the life the destroyer feeds on.

In the economy of Providence great changes come mostly from unexpected sources. They were not Parsees or Levites who sought the bacteria of disease. They had no direct quarrel with the Father of Lies, but they doomed Satan when they found in their sterilized culture tubes the sign manual of the Creator of Evil. The germ theory, there established, sealed the fate of catastrophe. Henceforth Satan was an intruder. It was not sin that brought death into the world. Death was in the world before sin. The tree of life itself, in the midst of the Garden, was “for the healing of the nations.”

The fruit the man and woman were free to eat yielded its life to their hunger; and hunger itself implied disintegration and death.

Not the Walking Delegate who failed to create a lock-out in heaven, but the Creative Intelligence that shaped all things and set life in motion everywhere, is the author of the check that keeps all in balance. He makes peace and creates evil.

Our old friend Satan is an interloper and a fraud. Some day, perhaps, we shall rattle his armor and find no living thing therein—like the terrifying empty casque and breastplates that did duty for a ghost in miser Gaspard's window.

WILLIAM MCINTOSH.



LINES.

Mystic spring of vapor:
Opiate odor of colors:
Alas—I'm not all of me!
Wanton fragrances, dewy, dim,
Curl out from my drowsy soul;
Wrapping mists about its breast.
I dwell alone,
Like one-eyed star,
In frightened, darksome, willow threads.
In world of moan,
My soul is stagnant dawn—
Dawn; alas, dawn my soul is!
Ah, dawn—close fringed curtain
Of night is stealing up:—God—
Demon—Light—
Darkness—oh!

Desert of No More I want;—
World of silence, bodiless sadness tenanted;
Stillness.

YONE NOGUCHI.



IN RE OPHELIA.

[Hales vs. Petit, Plowden's Reports, 1st Vol., P. 253.]

I disagree with many good people and count not William Shakespeare a demi-god. Rather would I think of him as a man—a toiler; a master-workman, selecting from the folio-forests the fine grained woods with which to build that matchless instrument whose melodies still sing a lullaby to our life's regrets. Using but the best of the forest, leaving the lumber for us, the crude makers of discordant fiddles. I like to dream of him as at the Inns reading Plowden's late Reports; gibing perhaps at the Year Books' vile Latin, or at Littleton's unintelligible jumble. But best of all I love that quiet midsummer's evening when the friendly barrister from over the way drops in to chat with the master. (A sergeant, also, is sometimes there, but he is too dignified for all occasions and I never allow him to talk much at any time.) The gossip from the City to the Hall is exchanged. The barrister from over the way amusingly chronicles Sir Edward Coke's chagrin at his late granted absolution—Sir Edward's marriage ceremony having been irregular “evidently,” as the absolution read, “through ignorance of the law.” The twilight deepens and the young man seated apart near the window lays aside the book he has been reading. The master takes it up and idly turns the pages. Many of the triumphs and defeats there chronicled are very real ones to him. He pauses a moment at Lady Hales' case. The funereal rows of black type awaken memories of his first days at Westminster, when with lips apart he stared at the six sergeants—two for the Lady and four for the Crown—as they delivered their intricate arguments. As the master ends his solemn recital of the Lady's struggle for her own, the youngster near the window laughs. And we to this day laugh with him when we hear the case retried by poor mad Ophelia's grave-diggers.

Sir James Hales, the son of a Baron of the Exchequer, was a Justice of the Common Pleas, a suicide and ergo, a felon. For, “while walking through divers streets and highways of Cambridge, he did wantonly enter a ditch flowing there-through and himself therein feloniously and voluntarily drowned.” In those days of simple justice such an atrocious crime was,

though falling perhaps a little short of rank burglary, at least felony without benefit of clergy. This same spirit of simple justice not only denied him christian burial but also escheated his goods and chattels to the Crown, leaving his guilty widow, guilty through her marriage to such an atrocious criminal, penniless. In 1550, Lady Hales caused an action of trespass to be brought against one Petit, a lessee holding under the Crown, claiming that Sir James' alleged crime was not consummate until after his death and "the dead can do no wrong."

"The death precedes the forfeiture," argued the widow's learned council, "for until the death is fully consummate he is not a felon; for if he had killed another he should not have been a felon until the other had been dead and for the same reason he cannot be a felon until the death of himself be fully had and consummate."

The sergeants for the Crown insisted that the crime lay in the act done in the life-time which was the cause of the death. "The act consists of three parts: the imagination, the resolution and the perfection. The death is only a sequel to the act."

"It must be 'se offendendo;' it cannot be else. For here lies the point; if I drown myself wittingly, it argues an act: and an act hath three branches, it is, to act, to do, and to perform: argal, she drowned herself wittingly."

Sir Anthony Brown, in delivering the judgment of the Court, said: "Sir James Hales is dead; and how came he to his death? It may be answered, By drowning. And who drowned him? Sir James Hales. And when did he drown him? In his life-time. So that Sir James Hales, being alive, caused Sir James Hales to die, and the act of the living man was the death of the dead man."

"If the man go to this water, and drown himself, it is, will he, nill he, he goes—mark you that; but if the water come to him and drown him, he drowns not himself; argal, he that is not guilty of his own death shortens not his own life."

"But is this law?"

"Ay, marry, is't! crowner's quest law."

PRESTON KENDALL.



THE CRICKET: A FABLE.

A poor little cricket hidden in the flowery grass, regarded a butterfly, flying o'er the prairie. The insect shone with bright colors. Blue, purple and gold sparkled on his wings. Young, beautiful, little beau! He ran from flower to flower, taking and quitting all, even the most beautiful.

“Ah!” said the cricket, “how different is my life from his! Mother Nature has given him all and me nothing. I have no talent, still less figure. No one looks at me—I am ignored everywhere! As well not live at all!”

As he spoke, a troop of children arrived in the meadow. They all ran after the butterfly—they all wished to have it. Hats, handkerchiefs, bonnets, served to entrap him. The insect vainly sought to escape them. He soon became their conquest. One caught him by the wing, another by the body, a third by the head. It did not need so many efforts to pull the poor thing to pieces. “Oh! Oh!” said the cricket, “I am not so discontented as I was: it costs too much to shine in the world!”

ELEANOR M. WINN.



f Heaven or Hell I have no power to sing,
I cannot ease the burden of your fears,
Or make quick-coming death a little thing,
Or bring again the pleasure of past years,
Nor for my words shall ye forget your tears,
Or hope again for aught that I can say,
The idle singer of an empty day.

But rather, when aweary of your mirth,
From full heart still unsatisfied ye sigh,
And, feeling kindly unto all the earth,
Grudge every minute as it passes by,
Made the more mindful that the sweet days die—
Remember me a little then, I pray,
The idle singer of an empty day.

The heavy trouble, the bewildering care
That weighs us down who live and earn our bread,
These idle verses have no power to bear;
So let me sing of names remembered,
Because they, living not, can ne'er be dead,
Or long time take their memory quite away
From us poor singers of an empty day.

Dreamer of dreams, born out of my due time,
Why should I strive to set the crooked straight?
Let it suffice me that my murmuring rhyme
Beats with light wing against the ivory gate,
Telling a tale not too importunate
To those who in the sleepy region stay,
Lulled by the singer of an empty day.

WILLIAM MORRIS.



**SIDE TALKS WITH THE PHILISTINES: CONDUCTED BY THE
EAST AURORA SCHOOL OF PHILOSOPHY. 🍄 🍄 🍄**

🍄 “O, it is naught! It is naught,” said Clangingharp. “It is all a yawning void, the ghost of a joke, a mosquito’s dream, a lecture by Barrett Wendell.”

🍄 It was at the Universalist State Convention, held at Herkimer, N. Y., in September. Rev. Dr. Bolles was there—charming bookish old Dr. Bolles who is not so very old; then what if he was, seeing that his heart is the heart of youth! Dr. Bolles he met there a certain Literary Fellow who he had not seen for a Long While. Now the Literary Fellow he loves old Dr. Bolles and Dr. Bolles he likes the Literary Fellow, and not having met for a Long While, they embraced each other there on the sidewalk; then they went into the tavern called the Farmer Tavern to get dinner. They paid for the dinner at the desk; they paid a youth wearing a dimun pin, in good silver coin and then walked arm in arm into the dining room. The landlord was there seating his “guests.” Now the landlord’s name is Jay but it should be December, for he is as chilly a man as ever edited an intercollegiate chip-munk magazine. He is tall and stooping, with a yellow chin whisker; he is wheezy, and discerning (nit) and has a brass watch chain and one wisp of hair, that looks like dry hay, on his Number Six head. There was a convention in town and a horse race beside, and consequently the landlord was busy as a monkey catching fleas.

“Here *you*, sit here, and you fellow, *here*,” he bawled, snatching out two chairs at different tables.

“We can’t do *that*,” said Dr. Bolles, “you see we haven’t met for a Long While and we must sit together, otherwise we would have no appetite!”

“You set where I tell you!” cried the hustling, bustling landlord.

“We paid in advance!” said Dr. Bolles wofully.

“Yes, in our innocence we paid in advance.”

“Say, you fellers better git!” shouted the Ramrod.

“He can’t take a joke, can he?” said Dr. Bolles, turning to the Literary Fellow.

“No, he stood under an umbrella when God rained humor.”

“What a recruit he’d make for a Fallstaff Army?”

“Ah, your pencil—thank you—I’ll sketch him!”

By this time the fifty people in the dining room were in a roar of laughter and the landlord was in a red rage. “Here, you two fellows—go down and git your money back if you can’t be peac’ble! You mustn’t raise no row in my house.”

The Literary Fellow sketched.

“Come, we will go and get our money back,” said Dr. Bolles, sighting and snapping an imaginary kodak at the landlord. And out they walked, arm in arm, with stately dignity. They got their money back and once outside the tavern that is called the Farmer Tavern they laughed a loud peal of merriment at the landlord who stood under an umbrella when the heavens rained Philistine jokes. And the moral of this true tale is, don’t gibe a landlord who has a brass watch chain and a billy-goat whisker. And far away across the moor echoed the piteous cry of the curlew.

☛ There may be a difference twixt red-headed men and men with red hair, but I cannot explain it now. I’ve heard it said that no one ever saw an imbecile or a pauper with red hair, and that there are no red-headed old maids save those who are determined to remain old maids. All of which was brought up by my thinking of my red-head friend, Ellis—Ellis who writes “The Smoking Room” in the *Northwestern Lumberman*. Ellis might have graduated at a college of which Ras Wilson was president, but at a guess I don’t believe either one of them ever crossed a campus—and I’m glad. College would have ironed all of the individuality out of these strong men and given us instead a pair of droning curates. Emerson said “wealth is good for those who can use it,” and I say college is good for those who know how. Now Ellis is not the smartest man who ever lived, and no one claims that Ras Wilson is, not even Ras himself; but when I think of these men I mumble to myself, “Thou hast not much head, Teddy, but thou hast a heart and perhaps ’twill serve as well.” Into all the work these men do they infuse a deal of throbbing human sympathy. You seem to feel that you are in

the presence of a fellow on whom you can rely; one who has nothing to conceal, who is afraid of no man and of whom no man is afraid. And the moral of it is, while we cannot all be geniuses we can be gentle men if we have a mind to.

☛ “Life is a warfare,” remarked Clangingharp as he rolled a cigarette. He paused, licked the edges of the paper calmly, viewed his work with critical eye, applied the match, blew three whiffs through his nose and continued, “Life is a warfare—between the sexes. I’ll leave it to any truthful man or woman who has arrived at years of discretion, married or single, if life is not one long campaign between man and woman. There are continual skirmishes, advances, repulsions, nocturnal surprises, ambuscades, diplomatic consultations, parleys with one or both trying to outwit the other. After stormy times peace is declared with good priestly reservations; sometimes they call it eternal peace because it lasts a whole day. It’s mostly a game of strategy. Armistices are agreed on only for the sake of getting into the other’s camp to find out what is going on. ‘All is fair in love and war’ is a fool proverb. Bless my soul, love *is* war:—have you a match? Thank you!”

☛ A worthy young man writes me from Keokuk after this wise: I want to tell you something about Agnes Repplier. I just drew from our town library here a book of essays by her and on the first page is a notice that the book was placed in the library September 15, 1890. Yet I was the first person who ever called for the volume, and the leaves were still uncut.

The incident related is interesting, but it is not a fact about Agnes Repplier; it is a fact about Keokuk.

☛ “Who are those who will eventually be damned?” asked a Seeker after Truth of the Busy Pastor. “Oh, the others, the others, the others!” was the reply.

☛ Mrs. E. A. Richmond of West Medford, Mass., has been granted Letters Patent as Chief Musician to the Society of the Philistines. All parties expecting to strike the lyre and lift the tuneful lay at Christmas-tide around the merry yule log, should supply themselves at once with a copy of Mrs. Richmond’s *Philistine Phantasia*. It is dedicated to the American Academy of Immortals. Price, single copies, fifty cents.

☛ That Philistine giant, Col. Robert Mitchell Floyd, is cultivating a fine tonsure, yet his nature is as frolicsome as that of a country boy at recess. When Death calls for the Colonel he will have to wait, smoke a cigar and hear a good story, and by that time, egad! the destroyer will forget his errand. The Colonel is bookish, and has written some choice verse and better prose, but the thing he is to bring out soon is a compilation of over a hundred poems relating to the fruit that cost us Paradise. Incidentally there will also be in the book selections on apple pie, apple fritters, hard cider, baked apples and apple jack.

☛ Midnight Oil—high test—recommended by Charles G. D. Roberts; also the Gilbert Parker XXX brand Local Color in casks. Address,

PROF. JOHN PEASCOD,
Room 1101 Philistine Building,
East Aurora, N. Y.

☛ All jokes in the *Lotos* are warranted worked out by the publishers' own Egyptologist.

☛ My friend, Nixon Waterman, has been sending out Ms. and getting it back for about forty-seven years. Now the tide has turned. Three publishers, within a single week, have written him asking him to send 'em articles. One request would have been all right—but three! Land sakes!! Straightway did Nixon hasten to the printers and order ten thousand blanks printed, of which the following is a copy:

In declining to furnish the contribution you request, I trust the motives prompting my action will not be misconstrued. No reflection, whatever, upon the merit or character of your publication is intended. My non-acceptance of your offer may result from one or more of many causes, none of which relates to the desirability of your publication as a means of placing my work before the public.

A publisher, on having a request for manuscript rejected, should not infer, necessarily, that his offer lacks the qualities that would insure its acceptance by other writers of creditable standing. A request for manuscript which one writer may refuse, another may gladly consider.

Again thanking you for your pleasant communication, I am,

Very sincerely,

NIXON WATERMAN.

✿ I am in receipt of a letter from a gentleman in Cuyahoga Falls, Ohio, who says he hesitates about sending his dollar for membership in the Society of the Philistines because he is slightly bowlegged; and not looking well in a dress suit could not attend the Annual Dinner. His case will be considered by the School of Philosophy at its next session.

✿ A certain trifler, one Livy S. Richard, has this gentle gibe in a recent number of the *Scranton Tribune*: "It is a fact that Mr. Hubbard was tossed by a small Irish bull into the Irish Sea and drowned, but as all really good men go to East Aurora when they die, there is no change in his postoffice address."

✿ The next Annual Philistine Dinner will probably be in honor of Mr. Yone Noguchi.

✿ Here is a true story with a moral for those who can find it: A certain teacher in the primary department of one of the Chicago public schools had a six-year-old boy in her room who seemed rather perverse and very dull. When she would talk to the class he would sit with open mouth and stare at her. Five minutes afterward he could not, or would not, repeat three words of what he had been told. She could not get him to study; and so she scolded him, had him stand on the floor, "stay after school," and once tried whipping him. At last in despair she explained the matter to the principal. "For th' Lord!" that gentleman exclaimed, "we can't use the Public School funds to learn imbeciles! they should send that kid to the Home for Feeble Minded." And this was the advice sent by a big brother to the parents. The parents decided to accept the advice and they took the little boy to the Home for Feeble Minded and asked that he be received as an inmate.

The matron took the child on her lap, talked to him, read to him and showed him pictures. Then she said to the parents, "This boy is fully as intelligent as any of your other children, perhaps more so—but he is deaf."

☛ To Herbert S.:—Thanks for your well-meant letter. But the Roycroft holds no copyright on the Songs of Solomon and cannot therefore “stop that man Mosher from pirating the stuff,” as you suggest. None of Solomon’s stuff is covered by copyright.

☛ Mr. Warner once wrote a particularly good article wherein he says, “What is wanted in this era of literature, is not writers but discriminating readers.” Mr. Warner wrote a long preachment in order to make the matter plain. Now if I were at all given to sarkastical remarks I might say something just here. As it is I’ll only hint that no one wishes Mr. Warner to cease bookmaking and become a book buyer; but if Mr. Warner should cease to write and begin to read, why then I hope he’ll buy and read my books—no one need prove they are good, I acknowledge it myself. Catalogue on application.

☛ After all, there surely are too many people writing. I think I will draw up a list, the first rainy day, of the fellows who I think should quit. I’ll publish the names and if the rogues don’t stop perhaps there is a way to make ’em; there used to be.

☛ No mistake, Chimmie played a good game of ball. Then he could shout, too. I believe he is the only man who ever thoroughly rattled the Scranton pitcher. For this and other things his salary was raised; fame came to him and invitations, dainty and perfumed, fluttered his way by every mail. He was even invited to a Progressive Euchre at the Smythe’s on the Avenue. Now every one knows that Miss Mame Smythe is not only artistic but bookish, besides she elocutes beautiful.

“And did you accept the invitation?” I asked Chimmie, who was telling me the tale.

“Did I go? Well dats wot I did—see!”

“And I suppose you had a good time?”

“I didn’t say dat. Miss Mame she sent ’em in too hot. I couldn’t ezackly get on to her curves—see?”

“What did she say to you?”

“Well, one thing she said was, ‘Mister Fadden, which do you prefer, art or letters?’”

“Yes; and what did you say?”

“Wot t’ell could I say?”

✿ Literary aspirants in want of Homeric laurel trees (*laurus nobilis*) should apply at the Philistine Nurseries, East Aurora, N. Y.

✿ “What is your religious creed?” asked the interviewer of Miss Amy Leslie.

“I believe in the Nebular Hypothesis and a Tariff for Revenue only,” was the somewhat ambiguous reply.

✿ A celebrated Russian Princess has just dashed off a “pot boiler.” It appears in the last number of *Bloxam’s*. This fact in itself is of no importance. What impresses one is the frigid accuracy in description. The intelligent reader is introduced to a locomotive engine (whose name, by the way, is Zenobia and furnishes the title of the soup procurer) having eight-foot driving wheels. The headlight shines upon and irradiates the steam thrown off when in motion, to accomplish which feat the engine must advance backward. The stomach of this unique colossus is innocently ignorant of coal, being fed with logs and having a preference for chestnut timber; and its grinding genius, the hero, is engineer and fireman combined.

It is only just to remark that had the engine been fed with coal there would have been no romance to chronicle. Verily fiction is stranger than truth.

✿ Dr. MacDonald, the Nordau of America, has favored me with a copy of his book, *Abnormal Woman*. The learned doctor cites a hundred cases of “females” whose acquaintanceship he made through “personals.” In pursuing his subject he pursued many women and some of the women pursued him; and his argument is, that the fact of these women having had anything to do with him proves their abnormality. Motion granted without prejudice or costs.

✿ Who is it should quit writing things to print? I once asked Clangingharp. “Oh the others, the others, the others,” was the answer.

☛ When literary men are invited to dine they are expected to exhale wisdom at every pore. Thackeray said of a certain lion-hunter: “Should she invite Blondin to lunch, a wire would be stretched across the street and the great man would be expected to sip his tea in midair: did he not do this all the guests would consider themselves victimized.”

☛ I belong to no party, to no school, to no sect. And yet I belong to each; and all belongs to me, for I accept the good in all things. When anything that seems to savor of spite escapes from my ink bottle I am as innocent of vengeful intent as were the simple, swaying reeds that bending before the breeze sighed, “Midas, the king has asses ears.” Now the reeds really never voiced any such sentiment, but Midas mindful that he had asses ears thought they did; for any man having asses ears continually considers himself assailed.

☛ There is a man in East Aurora who strictly “observes” the Seventh Day; and being very pious, and there existing considerable doubt as to which is the Seventh Day, he also rests all the week.

☛ “Ah, he must be a queer man!” I said to the woman in the railroad carriage who insisted on complaining to me of her husband.

“Queer! he’s worse nor that—he’s a wolf in a medicated Jaeger combination suit.”

In a late issue of the *Chap Book* is the following poem:

My mother bade me not to pass
Too near her shining looking glass.
I thought it strange such things to say
To just a little girl at play;
So in one hour of mortal sin
I crept quite close and long looked in,
And, Oh, I saw within—a sorceress.

How much lovelier it would have been to us all if we could not remember a poem strangely similar—written at least six years ago by Mrs. Pratt, which ran:

My mother says I must not pass

Too near that glass;
She is afraid that I will see
A little witch that looks like me,
With red, red mouth to whisper low
The very thing I should not know.

☛ There is nothing half so funny in the joke books as the column in the Serious Family magazines devoted to conduct, which, according to Edwin Arnold, is three-fourths of life—that is, such life as some people have to be content with. There is a delightful humor in the absolution doled out at 25 cents a month, or whatever it is for subscription, to young people and widows and others who want to marry, or don't, or would like to wear white at a second marriage, or be wedded within six months after a parent's death, or eat ice cream with a spoon, or take some other liberty with the eternal unfitness of things which is called good manners. The column is usually run *a la* chaperon—by a lady of middle age plus, and not so pretty as to be in any sort of doubt about the attention she receives. Impartiality is thus secured. She knows the grapes are acid, and can give due warning of cramps and Sun mixture. She also knows the combinations of mauve and other soft tints that best moderate the advertised pangs of widowhood or other consolable conditions. She can tell to a dot how long children must wear deep black and what is the approved cut of mourning garments for first, second and third bereavements and grass ditto. Particulars adapted to all cases may be had in all the journals for ladies and ladies' ladies published in Philadelphia, which put out their leaves like the original tree of life twelve times a year, with red and yellow covers for Christmas.

☛ I am informed that the death of *The New Bohemian* was caused by slipping off the gang plank into the Irish Sea. The literary gang plank is very slippery and the Irish Sea is not yet full. Keep your eye on our Obituary Column.

☛ Often I am seized with a desire to buy a ticket to New York by the Empire State Express and become a Great Man. And I think I would ha' done this long ago had I not once seen Frank Stockton eating green corn off from the cob.

✿ “Why should not America have an Academy of Immortals?” asks Mr. Oscar Fay Adams. Bless you! it has. Any person properly vouched for remitting One Dollar to The Society of the Philistines, East Aurora, N. Y., will be duly enrolled.

ADVERTISEMENT.—A little before Christmas time “The Roycroft” will issue a dainty little book in red and black, on Japan paper, by Yone Noguchi, pupil and companion of Joaquin Miller.

✿

Cents, 52 Weeks, Numbers.

 ✿

✿ FOOTLIGHTS ✿

A Weekly Journal for the Theatre-Goers.

*Printed in two colors, with a cover page design by
ETHEL REED.*

Contains 32 illustrated pages filled with chat with actors and actresses, criticism of the new plays, gossip about the people of the stage, reviews of the new books, and gossip about the happenings in the literary world. Letters from special correspondents in Rome, London, Paris, New York and Boston. Also, short stories and verse, and once in a while an article by Sir Henry Irving, Richard Mansfield, or other favorites of the stage.

Edited by CHARLES BLOOMINGDALE, JR., and E. ST. ELMO LEWIS. The price of the paper is 5 cents an issue, \$2.00 per year. As a test of this magazine's advertising worth we will send you the paper for 52 weeks—**52 numbers for 52 cents.**



FOOTLIGHTS,
PHILADELPHIA, PA.

To Lovers of Fine Books
AND POSTERS.

On receipt of 10 cents we will send to any address a copy of our largely illustrated catalogue of 50c posters exhibited by "THE ECHO" and *The Century*.



Of the first edition of
Percival Poffard's Novel
OF TO-DAY

Cape of
Storms 

With cover design (in red, white and black) by Will H. Bradley, and title page by John Sloan, on hand-made paper, very few remain.

Price, \$1.00

Clever and out-of-the-common.—*Chicago Journal*.

Distinctly a clever book.—*Chicago Tribune*.

Has made a hit.—*Footlights*.

Brightly told.—*Milwaukee Evening Wisconsin*.



THE ECHO'S POSTERS.

Will H. Bradley's 1895, 25c.

John Sloan's	1.00
Miss H. S. Lowry's,	25c.
Bradley's, 1896,	25c.

The Echo, Chicago.

ON GOING TO CHURCH By GEORGE BERNARD SHAW, author "Quintessence of Ibsenism," "Arms and the Man," etc., etc. (Authorized Edition.) This book is done throughout in the best Roycroft style: Romanesque type, Kelmscott initials, Dickinson's Dekel-edge paper, wide margins  Price, stoutly bound in antique boards, One Dollar.

The Roycroft Printing Shop,
East Aurora,
N. Y.

NEWSPAPER CLIPPINGS.

We have the greatest Reading Room in the World and clip from 15,000 publications of all kinds.

We receive them direct from the publishers, every issue, and furnish clippings on all subjects, \$1.00 per month and upwards.

Material for Speeches Books, Sermons, Lectures, Special Information, Scrap Books, etc.

Write for particulars

THE CHICAGO PRESS CLIPPINGS BUREAU
36 La Salle Street, Chicago

A STORY IN VERSE  **GLYNNE'S WIFE,** 
BY JULIA DITTO YOUNG, AUTHOR OF "Thistle Down," "Adrift: a Story of Niagara," etc. Mrs. Young is a poet who has written much but published little. This, her latest and believed by her friends to be her best

work, is the product of a mind and heart singularly gifted by Nature, and ripened by a long apprenticeship to Art. As a specimen of the pure “lyric cry,” illustrating the melody possible in the English tongue, the volume seems to stand alone among all the books written by modern versifiers. Five hundred and ninety copies are being printed on smooth Holland hand-made paper, and twenty-five on Tokio Vellum paper. Bound in boards and antique silk; the Vellum copies will have on various pages special water-color designs done by the hand of the author. Every copy will be numbered and signed by Mrs. Young. Price on Holland paper, \$2.00; Vellum, \$5.00.

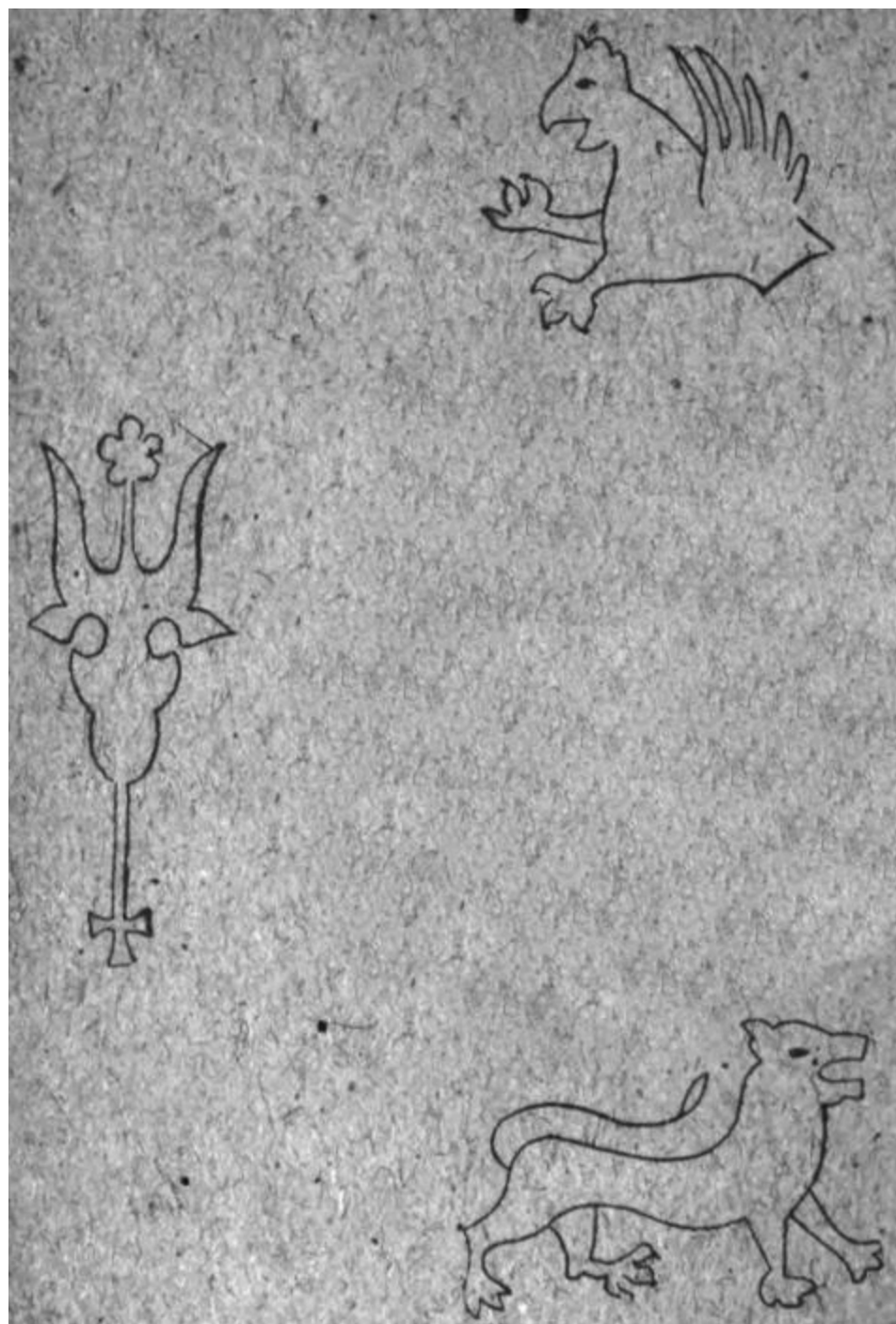
THE ROYCROFT PRINTING SHOP,
East Aurora, New York.

We make a specialty of Dekel Edge Papers and carry the largest stock 🍷
🍷 🍷 🍷 🍷 and best variety in the country. Fine Hand-made Papers in
great variety. Exclusive Western Agents for L. L. Brown Paper
Company’s Hand-mades.

GEO. H. TAYLOR & CO.,
207-209 Monroe Street,
Chicago, Ill.

Mr. Hubbard's new two-volume novel, entitled THE LEGACY, is now ready for delivery. The book has 450 pages of text on Dickinson's rough Dekle Edge paper; photogravure portrait of author and illustrations on Japan paper. Bound in bottle green chamois, silk lined. Price \$3.00, express paid.

The Roycroft Printing Shop,
East Aurora,
N. Y.



*** END OF THE PROJECT GUTENBERG EBOOK THE PHILISTINE

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.